



SPONSOR: Rep. Shupe & Sen. Lawson
Rep. Hilovsky

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 113

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO EDUCATION EMPLOYEES' RETIREMENT AND DISABILITY PENSIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 55, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 5535. Denial of benefits to education employees.

4 (a) Any sections of this chapter to the contrary notwithstanding, "employees" as used in this section applies to
5 individuals who are employed by the State Department of Education, a school district which is part of the state school
6 system, the University of Delaware, Delaware State University, or Delaware Technical and Community College.

7 (b) An employee, or survivor or beneficiary of an employee, who may otherwise be qualified to receive retirement
8 or disability benefits as outlined in this chapter, shall not be permitted to receive these benefits following their conviction of
9 sexual abuse of a child, sexual solicitation of a child, or promoting sexual solicitation of a child.

10 (c) Benefits are also denied to an individual under indictment for such an offense and willfully remains outside the
11 United States for more than 1 month to avoid prosecution.

SYNOPSIS

This bill denies retirement and disability benefits to Education employees if they were convicted of sexual abuse of a child, sexual solicitation of a child, or promoting sexual solicitation of a child. It also clarifies that benefits will be denied if an individual is under indictment for such offenses and remains outside the United States for more than 1 month to avoid prosecution.